

FEDERAL MARITIME COMMISSION

Office of Administrative Law Judges

IAN MILLS, *Complainant*

v.

CROWLEY LOGISTICS, INC., *Respondent*.

DOCKET NO. 1995(F)

Served: July 6, 2023

ORDER OF: Erin M. WIRTH, *Chief Administrative Law Judge*.

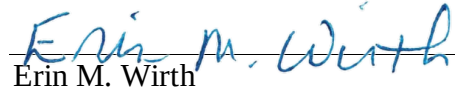
ORDER DESIGNATING ADMINISTRATIVE LAW JUDGE

On June 6, 2023, the Office of the Secretary issued a Notice of Filing of Small Claims Complaint and Assignment (“Notice”) stating that Complainant Ian Mills filed a complaint against Respondent Crowley Logistics, Inc. alleging violations of the Shipping Act. The complaint was docketed as an informal complaint pursuant to 46 C.F.R. Subpart S and assigned to the Chief Administrative Law Judge for appointment of a Small Claims Officer. The Notice stated that Respondent must state whether it consents to the adjudication of this matter under the informal procedures set forth under Subpart S of the Commission's Rules of Practice and Procedure.

On July 3, 2023, Respondent Crowley Logistics, Inc. filed a response and answer to complaint, memorandum in support of its answer and motion to dismiss complaint, and affidavits. Respondent stated that it did “not consent to the informal procedures of Subpart S.” Response and Answer at 1. Therefore, the claim will be adjudicated by an Administrative Law Judge under procedures set forth in 46 C.F.R. Subpart T. 46 C.F.R. § 502.311. This proceeding is assigned to the Honorable Alex M. Chintella who will conduct such hearings and conferences as may be necessary to resolve the issues in this proceeding and to issue an initial decision or dispositive ruling. In addition, the Docket Number is changed to 1995(F).

Respondent has filed a motion to dismiss. Complainant should respond to the motion to dismiss by July 19, 2023. By Commission order, certain requirements in 46 C.F.R. part 502 related to the paper filing of documents, ink signatures, and service by mail of complaints are currently waived. Order (May 12, 2020), Docket No. 20-07, available at www2.fmc.gov/readingroom/docs/20-07/20-07_order.pdf. Parties should email any filings to secretary@fmc.gov with courtesy copies (cc) to the opposing party and to judges@fmc.gov.

Information regarding where to find the Commission's rules of practice and procedure (46 C.F.R. § 502), Commission decisions, and other information helpful for parties may be found in the reading room section of the Commission's website, available at www2.fmc.gov/readingroom. Parties are strongly urged to familiarize themselves with the Commission's rules of practice and procedure. All filings and all attachments must have page numbers or they may be rejected.


Erin M. Wirth
Chief Administrative Law Judge